# TITLE 43—PUBLIC LANDS: INTERIOR

## Chapter I—Bureau of Land Management, Department of the Interior

### Appendix—Public Land Orders

[Public Land Order 1665]
[Anchorage 014664]

ALASKA

PARTIALLY REVOKING PUBLIC LAND ORDER NO. 903 OF JULY 3, 1953, WHICH RESERVED CERTAIN PUBLIC LANDS AS AIR NAVIGATION SITE WITHDRAWAL NO. 261

*Correction*

In Federal Register Document 58-4923, published at page 4810 of the issue for Saturday, June 28, 1958, the seventh line of the land description should read:

South, 4,485.5 feet to parallel 59°32' N.,

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[Public Land Order 1675]

[74459]

[Reservoir Site Restoration No. 27 (Power Site Cancellation No. 118)]

CALIFORNIA

PARTIALLY REVOKING THE EXECUTIVE ORDER OF JUNE 8, 1926, CREATING RESERVOIR SITE RESERVE NO. 17

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of June 8, 1926, creating Reservoir Site Reserve No. 17 (Pacific Slope Basins), is hereby revoked so far as it affects the following-described lands:

MOUNT DIABLO MERIDIAN

T. 1 S., R. 14 E.,
Sec. 15, S½SW¼;
Sec. 17, NW¼NE¼, SE¼NW¼, SW¼ and W½SE¼;
Sec. 20, W½NE¼, NW¼, NE¼SW¼ and SE¼;
Sec. 21, N½NE¼, W½SW¼, SE¼SW¼ and S½SE¼;
Sec. 22, W½NE¼, SE¼NE¼, NW¼, NE¼SW¼ and S½SW¼;
Sec. 23, Lots 12, 13, 14, 15, and 16;
Sec. 26, N½ Lot 1, Lots 2, 3, 4, 6, 7, 10, and E½ Lot 11;
Sec. 27, W½NE¼, E½NW¼ and W½SE¼;
Sec. 34, NW¼NE¼.

The areas described, including both public and non-public lands, aggregate 2,309.64 acres.

2. The Director of the Geological Survey on March 18, 1957 (22 F. R. 1993), cancelled the Departmental order of March 8, 1932, creating Power Site Classification No. 266 so far as it affects the lands described in paragraph 1 of this order.

3. The following-described lands, aggregating 160 acres are patented:

T. 1 S., R. 14 E.,
Sec. 15, SW¼SW¼;
Sec. 21, NE¼NE¼;
Sec. 22, W½NW¼.

4. The lands released by this order are located in southwestern Tuolumne County, approximately three miles south of the old settlement of Chinese Camp, California. They are generally rough and mountainous. The soil is clay derived from underlying serpentine bedrock, with outcrops in many places. The vegetation consists of scrub oak, chamise, toyon, and various annual grasses.

5. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

6. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(i) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(ii) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on August 8, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on November 7, 1958, will be governed by the time of filing.

(iii) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (i) and (ii) above, presented prior to 10:00 a. m. on November 7, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

7. The restored lands have been open to application and offers under the mineral leasing laws. They have been open to location under the United States mining laws pursuant to the provisions of the Act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621).

8. The restored lands shall be subject until 10:00 a. m. on October 2, 1958, to application by the State of California under any statute or regulation applicable thereto, for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818), as amended.

9. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Sacramento, California.

ROGER ERNST,
*Assistant Secretary of the Interior.*

JULY 3, 1958.

[F. R. Doc. 58-5318; Filed, July 11, 1958; 8:45 a. m.]

# TITLE 46—SHIPPING

## Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

### Subchapter C—Regulations Affecting Subsidized Vessels and Operators

[General Order 22, Revised, Amdt. 3]

PART 282—UNIFORM SYSTEM OF ACCOUNTS FOR OPERATING-DIFFERENTIAL SUBSIDY CONTRACTORS

RESCISSION OF MISCELLANEOUS AMENDMENTS

The miscellaneous amendments to Part 282 appearing in the FEDERAL REGISTER issue of July 2, 1958 (23 F. R. 5039) are hereby rescinded.

[SEAL] CLARENCE G. MORSE,
*Maritime Administrator.*

[F. R. Doc. 58-5331; Filed, July 11, 1958; 8:49 a. m.]

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[General Order 31, Revised]

PART 286—ESTABLISHMENT AND MAINTENANCE OF THE STATUTORY CAPITAL AND SPECIAL RESERVE FUNDS AND DETERMINATION OF "CAPITAL NECESSARILY EMPLOYED IN THE BUSINESS" AND "NET EARNINGS"

Effective as of January 1, 1958, Part 286 is hereby revised to read as follows:

Sec.
286.1 Order.
286.2 Creation and maintenance of statutory reserve funds.
286.3 Capital necessarily employed in the business.
286.4 Net earnings.
286.5 Preliminary compliance with reserve and recapture requirements.
286.6 Explanations and reservations.

AUTHORITY: §§ 286.1 to 286.6 issued under sec. 204, 49 Stat. 1987, as amended; 46 U. S. C. 1114. Interpret or apply sec. 207, 49 Stat. 2005, as amended; 46 U. S. C. 1177.